

18 May 2026

Our ref: C-2336089

Mr Richard McLean (Barran Dodger)

By email only: richarddrawsstuff@gmail.com

Dear Mr McLean

Recording and publication of your advice appointment on YouTube

On 12 May 2026 you emailed a Legal Aid NSW solicitor telling her that you had recorded your advice appointment with her on the same date and published it on YouTube (the video).

As noted on the Legal Aid NSW website, clients are expected to treat our solicitors with courtesy, and act in a way that is fair and reasonable. Your posting of the video without the solicitor's knowledge or consent is a breach of these standards.

Under section 7 of the *Surveillance Devices Act 2007* (NSW), it is a criminal offence to record a private conversation without the consent of the other party. This is a serious offence which carries a maximum penalty of up to 5 years in prison.

We have notified YouTube that the solicitor did not consent to the recording as required by the *Surveillance Devices Act*.

Please remove the video from YouTube by 5pm on Monday 25 May 2026. If the video is not removed, we intend to take further action.

Communication Plan with Legal Aid NSW

I am also aware that the emails you sent to the solicitor included statements that she "should watch her back."

We take staff safety and wellbeing very seriously. Because of this behaviour, I have decided to limit how you can contact Legal Aid NSW.

You must contact Legal Aid NSW in writing only.

What this means

- All communication must be in writing by email or post.
 - **Email:** complaints@legalaid.nsw.gov.au

- **Post:**
Complaints Team
PO Box K847
Haymarket NSW 1240

- Your communication must be polite and must not include offensive or inappropriate language.
- We will only respond to your emails or letters if we decide it is necessary.
- You cannot visit any Legal Aid NSW office or approach our solicitors at court or anywhere else. If you do, you will be asked to leave. If you refuse, the Police will be called.
- If you call us, we will end the call.

Review of this decision

This decision takes effect immediately and will remain in place for 12 months. After that, we will review it and decide whether to keep, change, or remove these limits.

I do not make these decisions lightly, but the safety and wellbeing of our staff must come first.

You may still apply for a grant of legal aid during this period. Your application will be assessed under our usual policies.

If you are unhappy with this decision, you may raise your concerns with the NSW Ombudsman, who deals with complaints about NSW government agencies: (02) 9286 1000 / info@ombo.nsw.gov.au.

Yours sincerely



Tanya Bruning
Director Client Service and Compliance